

Summary

Petitioner Erica Tiffany Thomas's Petition for Approval of Compromise of Minor Honestii Amara Lumsey's ("Minor") Claim ("Petition"), filed on September 18, 2025, is granted, as set forth below.

Background

On September 18, 2025, Petitioner Erica Tiffany Thomas, parent and guardian ad litem for her daughter, Honestii Amara Lumsey, filed the Petition through counsel Hazel Chang, to compromise the claim that Minor had against Antioch Eden Rivertown, L.P. related to an incident that occurred on July 26, 2022. In that accident, Minor sustained injuries including a broken leg, along with emotional trauma. Petitioner represents that Minor has received treatment at UCSF Benioff Children's Hospital. She has fully recovered and there are no permanent injuries. After some time in litigation, the Defendant offered settlement in the amount of \$100,000, of which \$31,497.67 is to be paid to Petitioner behalf of Minor to be placed into a blocked account. The deductions are as follows: (1) \$1,700.73 for Medi-Cal liens; (2) \$26,801.60 costs incurred in litigation; and (3) \$40,000 for attorneys' fees. Petitioner prepared a proposed order to deposit funds into a blocked account for the benefit of the Minor.

Ruling

The Court continued this matter because it was concerned that the fee percentage of 40% is not consistent with the criteria for a reasonable attorney's fee under CRC 7.955(b). Counsel were given the option of either accepting a reduction of the fee to \$30,000 (30% of the recovery) or continuing the matter and submitting a supplemental brief addressing compliance with the CRC factors. Counsel submitted a supplemental declaration, which contained a small amount of additional information to comply with the California Rules of Court. Although the Court is still concerned that the initial 50% contingency fee was extraordinarily high, and the 40% reduction offered by the attorneys remains high but is lower, the Court appreciates that the number of hours, the costs incurred (which are being separately reimbursed), the complexity of the claim for substantial recovery given that the Minor has apparently fully healed, and the length of representation. After careful examination of the Petition, declarations, and proposed orders, the Court finds good cause to approve the Petition. Accordingly, the Petition is granted. The Court will execute the Proposed Order Approving Compromise of Minor's Claim and the Proposed Order to Deposit Funds into a Blocked Account lodged on September 18, 2025.

3. 9:00 AM CASE NUMBER: C24-01616
CASE NAME: BILLY EVERS VS. GILBERTO HERNANDEZ
HEARING IN RE: JOINDER TO MOTION TO COMPEL ARBITRATION
FILED BY: HERNANDEZ, GILBERTO
TENTATIVE RULING:

This matter has been reassigned to Department 16 and continued to April 22, 2026.

4. 9:00 AM CASE NUMBER: C24-01854
CASE NAME: REGINALD CANNON VS. MELISSA KATZ
***HEARING ON MOTION FOR DISCOVERY COMPEL RESPONSES TO REQUEST FOR PROD OF DOCS**
AGAINST HCR IV HEALTHCARE
FILED BY: CANNON, REGINALD R.
TENTATIVE RULING:

This motion was withdrawn by Plaintiffs.

5. 9:00 AM CASE NUMBER: C24-01854
CASE NAME: REGINALD CANNON VS. MELISSA KATZ
***HEARING ON MOTION FOR DISCOVERY COMPEL FURTHER RESPONSES TO REQUEST FOR PROD OF**
DOCS AGAINST DEFS
FILED BY: CANNON, REGINALD R.
TENTATIVE RULING:

Plaintiffs Reginald Cannon et al. bring this Motion (1) to Compel Further Responses to Requests for Production; (2) to Compel Production of Documents; (3) to Compel Verifications; and (4) for Monetary Sanctions Against Defendants Manor Care of Walnut Creek CA LLC (Manor Care), HCR Manor Care Services, LLC (HCR Manor Care), Promedica Employment Services, LLC (PES), and Promedica Health System, Inc. (PHS). All four Defendants filed oppositions.

Background

This is an elder abuse case with several defendants. This is one of originally seven—six after the withdrawal of one motion by Plaintiffs—discovery motions filed in this matter. The Court ruled the week prior on the first three to be heard.

On November 27, 2024, Plaintiffs served their RFPs on Defendants. At that time, all relevant Defendants were represented by a single law firm. After a negotiated extension, Defendants jointly served unverified responses to Plaintiffs' RFPs on February 7, 2025. Throughout 2025, Defendants continued to serve unverified supplemental responses. Plaintiffs sent meet and confer correspondence during that time. There is no evidence before the Court that Defendants at any time sent any response correspondence.

On January 28, 2026, at a Case Management Conference, the Court heard from the parties that there was voluminous discovery and that new counsel intended to supplement the discovery. The Court requested further meeting and conferring, noting that it did not wish to prepare for a motion that was mooted. The Court stated that the service of amended responses "doesn't mean you're entitled to sanctions, but they don't automatically go off calendar, but I would like the parties to meet and confer as much as they possibly can and see if ahead of the hearing you can communicate to the court any kind of at least narrowing of the issues."

On October 1, 2025, Plaintiffs filed the instant motion. On October 13, 2025, current counsel for HCR Manor Care and PHS substituted in. Manor Care and PES retained prior counsel. On March 6, 2026, PHS served verified amended responses to the Requests for Production of Documents. On March 6,